

STATE OF NEW YORK

9071--A

2025-2026 Regular Sessions

IN ASSEMBLY

September 5, 2025

Introduced by M. of A. VALDEZ, GONZALEZ-ROJAS, MEEKS, SHRESTHA, LEVENBERG, RAGA, WRIGHT, STECK, LEE, DILAN, COLTON -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the workers' compensation law, in relation to including certain persons engaged in a professional or teaching capacity in or for a religious, charitable or educational institution as employees for purposes of eligibility for paid family leave

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The opening paragraph of subdivision 5 of section 201 of
2 the workers' compensation law, as amended by chapter 481 of the laws of
3 2010, is amended to read as follows:
4 "Employee" means a person engaged in the service of an employer in any
5 employment defined in subdivision six of this section, except a minor
6 child of the employer, except a duly ordained, commissioned, or licensed
7 minister, priest or rabbi, a sexton, a christian science reader, or
8 member of a religious order, or an executive officer of a corporation
9 who at all times during the period involved owns all of the issued and
10 outstanding stock of the corporation and holds all of the offices pursuant
11 to paragraph (e) of section seven hundred fifteen of the business
12 corporation law or two executive officers of a corporation who at all
13 times during the period involved between them own all of the issued and
14 outstanding stock of such corporation and hold all such offices
15 provided, however, that each officer must own at least one share of
16 stock, except as provided in section two hundred twelve of this article,
17 or an executive officer of an incorporated religious, charitable or
18 educational institution, or persons engaged in a professional or teaching
19 capacity in or for a religious, charitable or educational institution,
20 or volunteers in or for a religious, charitable or educational

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 institution, or persons participating in and receiving rehabilitative
2 services in a sheltered workshop operated by a religious, charitable or
3 educational institution under a certificate issued by the United States
4 department of labor, or recipients of charitable aid from a religious or
5 charitable institution who perform work in or for the institution which
6 is incidental to or in return for the aid conferred, and not under an
7 express contract of hire; provided, however, that persons engaged in a
8 professional or teaching capacity in or for a religious, charitable or
9 educational institution shall be deemed employees for purposes of family
10 leave pursuant to this article. The terms "religious, charitable or
11 educational institution" mean a corporation, unincorporated association,
12 community chest, fund or foundation organized and operated exclusively
13 for religious, charitable or educational purposes, no part of the net
14 earnings of which inure to the benefit of any private shareholder or
15 individual.

16 § 2. This act shall take effect on the first of January following the
17 first of September next succeeding the date on which it shall have
18 become a law and shall apply to all policies or contracts issued,
19 renewed, modified, altered or amended on or after such date.